

		“[W]hen a plaintiff asserts a claim against a health care provider on a legal theory other than professional negligence, courts must determine whether the claim is nonetheless <i>based on the health care provider’s professional negligence</i>, which would require application of MICRA. ¶ To make that determination, courts must examine not only the legal theory alleged, but also the nature of the health care provider’s alleged conduct and the legislative history of the MICRA provision at issue.” (<i>Larson v. UHS of Rancho Springs, Inc.</i> (2014) 230 Cal.App.4th 336, 347 [internal citations omitted; emphasis in original].) Here, the Court finds that Plaintiff’s claim for negligence against the moving defendants is not based on allegations of professional negligence. Plaintiff does not allege that the medical care provided to the decedent by the moving defendants fell below the standard of care. Rather, Plaintiff alleges an outright failure to provide care. (See e.g., Complaint, ¶ 19.) In <i>Holland v. Silverscreen Healthcare, Inc.</i> (2025) 18 Cal.5th 364, 380, the California Supreme Court stated that “a failure of staff to attend to, monitor, or assist a resident in obtaining appropriate medical care generally falls on the custodial side of the line because such omissions involve “not ... the undertaking of medical services, but... the failure to provide medical care.” (Citing to <i>Covenant Care, supra</i>, 32 Cal.4th at 783.) The Supreme Court held that “allegations that a skilled nursing facility failed to provide “nutrition, hydration, and medication” and left the patient “in his bed, unattended and unassisted, for excessively long periods,” causing death from starvation, dehydration, and sepsis stated a claim of custodial neglect, rather than professional negligence.” (<i>Holland, supra</i>, 18 Cal.5th 364 at 380.) Similar allegations are stated in Plaintiff’s Complaint, here. Accordingly, the demurrer is overruled. Plaintiff shall give notice.
6.	2026-1545921 King Shin Ship Management Co. vs. Beyond Loan 1 LLC	Plaintiff King Shin Ship Management Co., Limited’s (“Plaintiff”) application for right to attach order and order for issuance of writ of attachment after hearing, against defendant Beyond Loan 1 LLC (“Defendant”), is denied.

		Plaintiff moves, under CCP section 483.010, for the issuance of a writ of attachment against Defendant in the amount of \$100,000.00. Defendant proffers evidence that Debenture No. 1 includes an arbitration provision, which provides, in relevant part, that “any claim, dispute, or controversy of whatever nature arising out of or relating to this Debenture, including, without limitation, any action or claim based on tort, contract, or statute . . . shall be resolved by final and binding arbitration ... before a single arbitrator ... selected from and administered by JAMS Inc.” (ROA 75—Ye Decl. at ¶ 8, Exh. 1 [Debenture No. 2 at § 15].) Additionally, Defendant has filed a motion to compel arbitration and to stay proceedings. (ROA 67.) Defendant contends Plaintiff has failed to meet the standard required for obtaining provisional relief when a dispute is subject to arbitration. CCP section 1281.8 provides, in relevant part, that: “A party to an arbitration agreement may file in the court in the county in which an arbitration proceeding is pending, <i>or if an arbitration proceeding has not commenced</i>, in any proper court, an application for a provisional remedy in connection with an arbitrable controversy, <i>but only upon the ground that the award to which the applicant may be entitled may be rendered ineffectual without provisional relief</i>.” (Code Civ. Proc., § 1281.8, subd. (a), emphasis added.) There is no dispute that Defendant is in the process of selling certain real property in Texas and intends to use the proceeds to repay its creditors. Plaintiff has not shown that the arbitration award to which it may be entitled would be “rendered ineffectual” without provisional relief. The application is denied without prejudice to Plaintiff seeking renewal if such facts can be stated. Defendant shall give notice of the ruling.
7.	2021-1231301 Gulham vs. Younge	The Court grants Cross-Defendant Yama Gulham’s unopposed Motion for judgment on the pleadings as to the third cause of action for malicious prosecution in Cross-Complainants Michael A. Younge and Amany Simmonds’ Cross-Complaint. Younge and Simmonds chose not to oppose this Motion, thereby acknowledging its merit. (<i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20.) The Court notes that a First Amended Cross-Complaint was filed on 3/6/23. (ROA 97.) But this was filed while an Anti-SLAPP motion was pending. A plaintiff (or cross-complaint) is not permitted to amend the complaint before the hearing on the anti-SLAPP motion. (<i>Salma v. Capon</i> (2008) 161 Cal.App.4th 1275, 1280.) Thus, the First Amended Cross-Complaint is improper and stricken.